



Via Electronic Filing

September 26, 2018

Ms. Rachel Dickon
Secretary
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573

Re: *Marine Transport Logistics, Inc. v. CMA CGM (America) LLC*
FMC Docket No. 18-07

Dear Ms. Dickon,

Enclosed are an original and five (5) copies of the Answer of Respondent CMA CGM (America) LLC to the Complaint filed in the above-captioned matter. I also enclose a Notice of Appearance.

I have enclosed an extra copy of the Answer and kindly ask that you stamp it as "received" and return it to us using the enclosed envelope and shipping label.

If you have any questions or concerns regarding this matter, please do not hesitate to contact the undersigned.

With best regards, I am

Sincerely,

A handwritten signature in blue ink, appearing to read 'Draughn B. Arbona', with a long horizontal flourish extending to the right.

Draughn B. Arbona
Deputy General Counsel

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 18-07

MARINE TRANSPORT LOGISTICS, INC.

COMPLAINANT

v.

CMA CGM (AMERICA) LLC

RESPONDENT

ANSWER OF RESPONDENT CMA CGM (AMERICA) LLC TO COMPLAINT

Respondent CMA CGM (America) LLC ("CMA"), by its undersigned attorney, answers the Complaint of Marine Transport Logistics, Inc. and alleges upon information and belief as follows:

PARTIES

1. Respondent lacks sufficient information or knowledge to admit or deny.
2. Respondent lacks sufficient information or knowledge to admit or deny.
3. Respondent admits that it has an office located at One Meadowlands Plaza, Suite 201, East Rutherford, NJ, 07073. Respondent denies the remaining portions of paragraph 3 and clarifies that it acts as agent for CMA CGM S.A., which is a Vessel Operating Common Carrier.

JURISDICTION

4. Respondent denies that 46 U.S.C.S. 30701 provides proper subject matter jurisdiction. Respondent admits the remaining portions of paragraph 4.
5. Admit.
6. Deny.
7. Respondent admits paragraph 7 to the extent the relevant containers have not been delivered to the originally booked port of discharge due to Yemen's current political landscape and significant risks/difficulties related to Yemen's political difficulties. Respondent denies the remainder of the paragraph.
8. Respondent lacks sufficient information to admit or deny.
9. Respondent lacks sufficient information to admit or deny.
10. Respondent lacks sufficient information to admit or deny.
11. Respondent lacks sufficient information to admit or deny.
12. Respondent lacks sufficient information to admit or deny.
13. Respondent lacks sufficient information to admit or deny.
14. Deny.

FIRST CAUSE OF ACTION

15. Respondent reiterates its responses to paragraphs 1 to 14.
16. Deny.

SECOND CAUSE OF ACTION

17. Respondent reiterates its responses to paragraphs 1 to 16.
18. Deny.

THIRD CAUSE OF ACTION

19. Respondent reiterates its responses to paragraphs 1 to 18.

20. Deny.

DAMAGES

21. Respondent lacks sufficient information to admit or deny.

22. Respondent lacks sufficient information to admit or deny.

23. Respondent lacks sufficient information to admit or deny.

REQUEST FOR A HEARING

24. This paragraph does not require a response from Respondent.

INFORMAL DISPUTE RESOLUTION

25. Respondent admits that certain containers have not been released due to lack of payment by Complainant. Respondent further admits the parties have been participating in mediation discussions with the Federal Maritime Commission's Consumer Affairs and Dispute Resolution Services regarding the shipments at issue. Respondent denies all other portions of Paragraph 25.

AFFIRMATIVE DEFENSES

26. The Complaint fails to state a valid cause of action against CMA under the Shipping Act.

27. CMA reserves the right to seek enforcement of the forum selection clause and/or choice of law clause contained in the applicable service contract governing the shipments.

PRAYER FOR RELIEF

WHEREFORE, Respondent CMA respectfully requests that the Federal Maritime Commission deny the relief sought by Complainant.

Respectfully submitted,



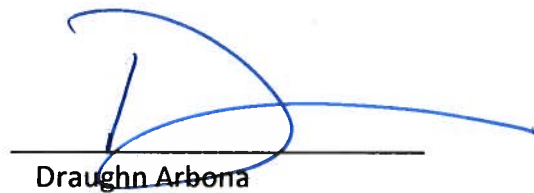
Draughn Arbona
CMA CGM (America) LLC
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Norfolk, VA 23502
Tel: 757-961-2132
usa.darbona@usa.cma-cgm.com

Attorney for Respondent CMA CGM (America) LLC

CERTIFICATE OF SERVICE

I hereby certify that I have served a true and correct copy of the foregoing Answer of Respondent CMA CGM (America) LLC on the Complainant by sending a copy via United Parcel Services to Complainant's attorney at the following address:

Mr. Garry Pogil
112 West 34 Street, 18th Floor
New York, NY 10120

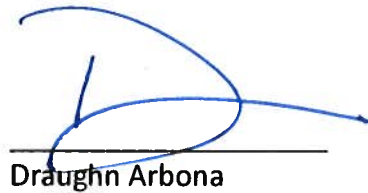


Draughn Arbona

VERIFICATION

I, Draughn Arbona, declare and state that I am the Deputy General Counsel of CMA CGM (America) LLC; that I have heard the foregoing Complaint; and that the facts stated therein are true to the best of my knowledge, information, and belief formed after reasonable inquiry.

I declare this 26 day of September, 2018, under penalty of perjury, that the foregoing is true and correct.



Draughn Arbona